

# FEDERAL MARITIME COMMISSION

## Office of Administrative Law Judges

DOLLAR GENERAL LOGISTICS, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

**DOCKET NO. 25-12**

Served: December 17, 2025

**ORDER OF:** Linda S. Harris CROVELLA, *Administrative Law Judge*.

### AMENDED SCHEDULING ORDER

On July 1, 2025, the Commission issued a Notice of Filing of Complaint and Assignment (“Notice”) for this proceeding. On July 25, 2025, Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) filed an answer. On August 8, 2025, the parties filed a Joint Status Report (“JSR”) and proposed a schedule that extends discovery six months beyond the 150 days set forth in Rule 141 (the parties propose close of discovery on June 26, 2026). 46 C.F.R. § 502.141(g). On August 12, 2025, I issued a scheduling order that extended the schedule two months<sup>1</sup> beyond the 150-days set in Rule 141, but less than the six months sought by the parties at the outset. At the time, I cautioned the parties that “[m]otions to further enlarge the discovery period are unlikely to be granted absent a detailed statement of good cause.” Scheduling Order at 1.

On November 13, 2025,<sup>2</sup> the parties jointly moved to extend the schedule, requesting to extend all deadlines by an additional three months. Coupled with the additional two months provided in the initial scheduling order, the parties are now seeking an extension that would result in completion of discovery five months after the date set by Rule 141. Among the reasons cited as good cause for extending the schedule, the parties state that they must take time to “manually review [the documents] for responsiveness, confidentiality, and privilege before production—a process that necessarily requires substantial time and care.” Joint Motion to Extend Deadlines at 2-3. At the time the parties filed the joint motion to extend, they stated that Complainant Dollar General Logistics, LLC (“Dollar General”) had collected “more than 31,000 documents loaded after deduplication from 9 custodians as well as network share drives and

<sup>1</sup> If strictly adhered to, Rule 141 would direct that discovery conclude on December 22, 2025, but I extended it to February 20, 2026, based on the parties’ representation that accessing and obtaining documents from custodians in various states and countries and then reviewing them prior to producing them would take more time.

<sup>2</sup> The parties submitted the Joint Motion to Extend Deadlines on October 24, 2025, during the government shutdown. Accordingly, the date of filing is November 13, 2025, the day the government reopened.

other sources of data.” *Id.* at 2. Yang Ming had collected over 20,000 documents and network share drives and “individual laptop and phone data collection from nine custodians located in several States of the US and in foreign countries is underway....” There is no indication in the joint motion that the parties had produced any records to each other as of October 24, 2025, and the discovery schedule set substantial completion of document production by October 31, 2025. Both parties state that they are working with e-discovery providers.

A Joint Status Report (“JSR #2”) was submitted on December 12, 2025, and in it the parties state that Dollar General has “completed its first production of approximately 1,400 documents to Respondent on October 30, 2025” and now must complete screening of approximately 29,000 more documents. JSR #2 at 2. It also states that Yang Ming has now collected 300,000 documents, but there is no indication in the filings that it has produced any of them to Dollar General. JSR #2 at 3. It is unclear how the government shutdown impacted the parties’ ability to review and produce documents to each other, but the shutdown is referenced as a challenge to the parties meeting the discovery schedule. JSR #2 at 1-4.<sup>3</sup> In both the joint motion to extend and the JSR #2, the parties reference other proceedings where extensions of time were granted, including by me as the Presiding Officer, but the circumstances were very different from the facts of the case *sub judice*. In the proceedings cited to support their request for an additional three months to complete discovery, two of the cases included a bankrupt party where a bankruptcy trustee had to be consulted at each phase and the complainants’ witnesses no longer worked for the bankrupt company, and/or the parties produced over one million pages of records (*Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited* (Docket No. 23-02); *Bed Bath & Beyond Inc. v. Yang Ming Transport Corp.* (Docket No. 23-10)); and a third case cited in support included a party that suffered a cyber-attack and then reached a settlement that stayed the proceeding (*One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC* (Docket No. 22-03)). While the parties say they are aware of the administrative law judge’s denial of a request for a 120-day extension in *Way Interglobal Network, LLC v. Shenzhen Unifelix SCM Limited*, (Docket No. 22-28), where she found the request unreasonable and allowed only 45 days, they simply state that here that they have “limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation,...” without citing to any unusual issues that have arisen that could be delaying their document production, decisions on using and deposing experts, or scheduling of depositions. Joint Motion to Extend Deadlines at 4. Moreover, discovery began on August 22, 2025, nearly four months ago, yet only Complainant has produced a small number of documents. Without more, it is hard to appreciate that the parties are unable to meet discovery deadlines absent a three-month extension.

The Initial Decision must issue by the date set by the Commission, July 1, 2026; that date has not changed because of the government shutdown. Notice at 2. As stated in the August 12,

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<sup>3</sup> On October 1, 2025, the parties were sent an email from [Judges@fmc.gov](mailto:Judges@fmc.gov) that said in pertinent part: “...the deadlines established for filing documents with the Commission are delayed until the Commission offices are open and accessible. Parties are expected to proceed with their cases to the extent possible, including conducting discovery and serving opposing parties with filings – including motions, briefs, and responses to requests for additional information – by the established deadlines.” There is no mention of tolling deadlines to produce documents, or tolling the date set by the Commission for the Initial and Final Decisions to issue.

2025, Scheduling Order, “[m]otions will not automatically stay other deadlines in the proceeding” yet the parties have not met the deadlines established in that order to date. Scheduling Order at 2. The extension of the schedule as proposed by the parties is not reasonable and will substantially delay this proceeding. Accordingly, the 90-day extension is denied, and the schedule is amended as detailed below. Motions to further enlarge the discovery period are unlikely to be granted.

Accordingly, the parties are **ORDERED** to follow the following schedule:

|                   |                                                                                                                                                              |
|-------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| January 9, 2026   | Substantial completion of document (including ESI) production                                                                                                |
| January 9, 2026   | Begin depositions of fact witnesses                                                                                                                          |
| January 16, 2026  | Joint status report #3 regarding status of discovery including how many expert reports and depositions, if any, are planned and a proposed briefing schedule |
| February 9, 2026  | Complete depositions of fact witnesses                                                                                                                       |
| February 9, 2026  | Last day to serve interrogatories, requests for admission, requests for production of documents                                                              |
| February 27, 2026 | Disclosure of initial expert reports, if any                                                                                                                 |
| March 13, 2026    | Disclosure of rebuttal expert reports, if any                                                                                                                |
| March 20, 2026    | Complete expert depositions                                                                                                                                  |
| March 20, 2026    | Complete discovery                                                                                                                                           |

The parties were ordered to disclose how many expert reports and depositions, if any, they intended to produce and to conduct, but instead, they reported that they could not do so, despite nearly four months of discovery. Scheduling Order at 2; JSR #2 at 4. It is concerning at this point in discovery that the parties cannot “provide a meaningful estimate” as to the number of experts they plan to employ. *See* 46 C.F.R. § 502.141 (d)(4) (“The time for disclosure of expert testimony must be addressed by the parties when they confer as provided in paragraph (h) of this section and, if applicable, must be included in the proposed discovery schedule submitted to the presiding officer.”). The parties’ failure to employ experts at this point—when they have known since August 12, 2025, that they needed to identify the number of reports and expert depositions they would need—will not be considered good cause to delay the proceeding further because their preferred expert is not available to submit a report or testify according to the schedule. Because the parties failed to disclose in JSR #2 whether they will employ experts, and how many of them, the schedule in that regard has been compressed. The parties may propose different dates by which to accomplish that part of discovery if they employ experts, with the caveat that expert depositions and all discovery must be completed by March 20, 2026.

To avoid further delay and prevent cumulative testimony, if either party intends to take more than 20 depositions, they must seek permission to do so. 46 C.F.R. § 502.143(a)(2)(i).



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Linda S. Harris Crovella  
Administrative Law Judge